

**CHAPTER lxix.**

An Act for conferring further powers upon the Wakefield Gaslight Company. A.D. 1912.
[7th August 1912.]

WHEREAS the Wakefield Gaslight Company (in this Act called "the Company") were reincorporated by the Wakefield Gas Act 1847 (in this Act referred to as "the Act of 1847") for the purpose of making and supplying gas within the limits by that Act defined:

And whereas further powers were conferred on the Company by the Wakefield Gas (New Capital) Act 1856 (in this Act referred to as "the Act of 1856") and by the Wakefield Gas Act 1877 (in this Act referred to as "the Act of 1877"):

And whereas the share capital of the Company is made up as follows:—

25,000*l.* created under the Act of 1847 consisting of one thousand ordinary shares of twenty-five pounds each entitled to a dividend at the rate of ten per centum per annum;

18,300*l.* raised by the creation and issue under the Act of 1847 of three thousand six hundred and sixty ordinary shares of five pounds each entitled to a dividend at the rate of ten per centum per annum;

36,700*l.* raised by the creation and issue under the Act of 1856 of seven thousand three hundred and forty ordinary shares of five pounds each entitled to a dividend at the rate of seven and a half per centum per annum;

50,000*l.* raised by the creation and issue under the Act of 1877 of five thousand ordinary shares of ten pounds each entitled to a dividend at the rate of seven per centum per annum;

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20,000*l.* raised by the creation and issue under the Act of 1877 of preference stock entitled to a dividend at the rate of four and a half per centum per annum:

And whereas the whole of such capital is paid up and the Company have under the Act of 1877 an unexercised power of raising capital to the amount of five thousand pounds:

And whereas in respect of the shares and stock issued by the Company under the Act of 1877 the Company have received premiums to the amount of thirteen thousand and seventy-four pounds seventeen shillings and ninepence:

And whereas the Company were authorised by the Act of 1877 to borrow on mortgage any sums not exceeding in the whole eighteen thousand seven hundred pounds and the Company have borrowed under that Act by the creation and issue of mortgage bonds which are now outstanding the sum of eleven thousand five hundred pounds entitled to interest at rates varying from three and a half to four per centum per annum:

And whereas it is expedient that the existing ordinary share capital of the Company should be converted into two classes of stock in the manner and subject to the provisions hereinafter contained:

And whereas the area in which the Company are authorised to supply gas was defined by the Act of 1847 to be the town and parish of Wakefield and the township of Sandal Magna in the parish of Sandal Magna and the township of Warmfield otherwise Warmfield-cum-Heath in the parish of Warmfield in the West Riding of the county of York:

And whereas the area so defined now comprises the city of Wakefield the urban district of Horbury the urban district of Stanley the parish of Alverthorpe the township of Warmfield-cum-Heath and part of the borough of Ossett in the West Riding of the county of York:

And whereas the Company have never supplied gas in the said urban district of Horbury and that district is within the limits of gas supply of the mayor aldermen and burgesses of the borough of Ossett (in this Act called "the Ossett Corporation") and it is expedient that the powers of the Company for and in relation to the supply of gas therein should cease:

And whereas the Company have agreed to sell to the Ossett Corporation the portion of their undertaking which is

situate within the borough of Ossett and it is expedient that the powers of the Company for and in relation to the supply of gas therein should cease and determine: A.D. 1912.

And whereas it is expedient that the existing limits of supply of the Company (excluding the said urban district of Horbury and part of the borough of Ossett) should be defined in reference to the existing local areas and should be extended as in this Act provided:

And whereas the parish or township of Crigglestone is adjacent to the present limits of the Company for the supply of gas and the Company have since the year 1881 supplied gas within a portion of that parish but without any statutory powers in that behalf:

And whereas the parish or township of Crigglestone was by the Ossett Corporation Gas Act 1900 included within the gas limits of the Ossett Corporation and that corporation supply gas in the greater portion of the said township or parish and it is expedient that provision be made for the purchase by the Ossett Corporation of the mains and works of the Company in the said township or parish:

And whereas it is expedient to empower the Company to use for the purposes of the manufacture and storage of gas the additional lands described in the First Schedule to this Act which the Company have acquired in pursuance of the powers conferred upon them by the Act of 1847:

And whereas it is expedient that the Company should be authorised to raise additional capital and that the other powers in this Act contained should be conferred upon the Company:

And whereas the provisions of the Gasworks Clauses Act 1871 have superseded or rendered unnecessary certain provisions of the recited Acts and it is expedient that those and other provisions of the said Acts should be repealed:

And whereas it is expedient that the Company should be authorised to construct the new footpath and to stop up the existing footpath in this Act described:

And whereas a plan and section showing the lines and levels of the said new footpath and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes of this Act were duly deposited

A.D. 1912. with the clerk of the peace for the West Riding of the county of York and are in this Act described as the deposited plan section and book of reference :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short and
collective
titles.

1. This Act may be cited as the Wakefield Gas Act 1912 and the Act of 1847 the Act of 1856 the Act of 1877 and this Act may be cited together as the Wakefield Gas Acts 1847 to 1912.

Incorporation of general Acts.

2.—(1) The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

The Gasworks Clauses Act 1847 ;

The Gasworks Clauses Act 1871 ;

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company ;

The accountability of the officers of the Company ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested; A.D. 1912.

Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III.

(relating to debenture stock) of the Companies Clauses

Act 1863 as amended by subsequent Acts; and

The Lands Clauses Acts.

(2) Section 13 of the Gasworks Clauses Act 1847 as incorporated with the Act of 1847 the Act of 1877 and this Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided that every such contract entered into by the Company" shall be alike in terms and amount under like circumstances "to all consumers" were added at the end of that section.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction: Interpreta-
tion.

"The recited Acts" means the Acts relating to the Company referred to in the preamble to this Act;

"The corporation" means the mayor aldermen and citizens of the city of Wakefield.

4. Section 32 (Limits of the Act) of the Act of 1847 is hereby repealed and from and after the passing of this Act the limits of the Company for the supply of gas (in this Act referred to as "the limits of supply") shall be as follows:— Limits of
supply.

(a) The following places forming part of the area in which the Company were immediately before the passing of this Act authorised to supply gas that is to say the city of Wakefield the urban district of Stanley the parish of Alverthorpe and the township of Warmfield-cum-Heath; and

(b) The parish of Crofton and the townships of Walton Chevet and Woolley;

all in the West Riding of the county of York:

Provided that the Company shall charge for gas supplied within the township of Woolley a sum of sixpence per one thousand cubic feet in excess of the sum from time to time charged by them for gas supplied within the other parts of the

A.D. 1912. limits of supply but any sum so charged in excess shall not be taken into account in calculating the rate of dividend payable under the section of this Act of which the marginal note is "Dividend dependent on price charged."

Confirmation
of construc-
tion of exist-
ing mains
&c.

5. Subject to the provisions of this Act the Company may maintain use renew alter extend and repair any mains pipes and other works already laid down by them in the parish of Crofton and in the townships of Walton and Chevet and the construction of the said works and the expenditure thereon is hereby sanctioned and confirmed.

For pro-
tection of
West Riding
county
council.

6. In executing the works and exercising the powers by this Act authorised so far as they affect main roads and county bridges of the West Riding of the county of York the following provisions for the protection of the county council of the said West Riding (in this section called "the county council") shall have effect unless otherwise agreed on in writing between the county council and the Company (that is to say):—

- (1) All mains pipes or works to be laid in or along any main road shall so far as is reasonably practicable be constructed and laid in such position at the side thereof as the county council shall by writing under the hand of their surveyor direct. Provided that this subsection shall not apply to service pipes:
- (2) Nothing in this Act shall authorise the Company to interfere with the structural part of any county or main road bridge without the consent in writing of the said surveyor. Such consent shall not be unreasonably withheld and may be given upon such conditions as the county council may reasonably determine:
- (3) All works to be constructed or laid in along or across or in any way affecting any main road or county or main road bridge or any approach thereto shall be executed at the expense of the Company under the superintendence and to the reasonable satisfaction of the said surveyor and (except in the case of service pipes) in accordance with plans sections and specifications to be submitted to and approved of by him in writing before the commencement of any such work and seven days' notice shall be given to the said surveyor of the intention to lay any service pipes

in such road Provided that if the said surveyor shall not within twenty-one days after the said plans sections and specifications shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof: A.D. 1912.

- (4) The works shall be so executed as not in any way to stop or unreasonably interfere with the traffic of any main road or county or main road bridge or any approach thereto and all such works shall be proceeded with and completed with all possible despatch:
- (5) Notwithstanding anything in this Act contained it shall be lawful for the county council at any time or times to divert widen or improve any such main road and also to remove alter widen or renew any such county or main road bridge or the approaches thereto in alongside or near to which any such mains pipes or works are carried in the same manner as they might have diverted widened or improved removed altered or renewed any such main road or bridge or the approaches thereto if this Act had not been passed and such mains pipes or works had not been constructed or laid in over alongside or near to such main road or bridge respectively without making any compensation to the Company for any expense or loss to which they may be put in consequence of such diversion widening improvement removal alteration or renewal And in the event of any such main road or bridge or the approaches thereto in alongside or near to which such mains pipes or works are laid being diverted widened or improved removed altered or renewed as aforesaid the Company shall at their own expense as and when requested by the said surveyor remove or alter the position of their said mains or pipes and the works by which the same are carried alongside or near to any such main road or bridge or the approaches thereto as aforesaid and replace the same to the reasonable satisfaction of the said surveyor of the county council Provided that before and during such diversion widening improvement removal alteration or renewal of any such main road or bridge

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as aforesaid the county council shall afford reasonable facilities for temporarily carrying such mains or pipes along the main road or across the stream so as not to interrupt the continuous supply of gas:

- (6) Notwithstanding anything in this Act contained if any difference arise between the Company and the county council touching this section or anything to be done or not to be done thereunder such difference shall be settled by arbitration by an arbitrator to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either of the parties in difference and subject thereto in accordance with the provisions of the Arbitration Act 1889.

For protec-
tion of cor-
poration.

7. In executing the works and exercising the powers by the recited Acts and this Act respectively authorised and conferred within the city of Wakefield the following provisions for the protection of the corporation shall unless otherwise agreed in writing between the Company and the corporation have effect (that is to say):—

- (1) All mains pipes and works to be laid in or along any street or road repairable by the corporation shall so far as is reasonably practicable be laid in such position in or at the side thereof as the corporation in writing under the hand of their surveyor may direct and in the case of mains pipes and conduits so far as is reasonably practicable at a depth of two feet six inches at least from the top of the socket thereof to the surface of the roadway Provided that this subsection shall not apply to service pipes:
- (2) Section 8 of the Gasworks Clauses Act 1847 shall be read and have effect as if the period of seven clear days were inserted therein instead of the period of three clear days in the said section mentioned and the notice therein mentioned shall be given to the surveyor of the corporation Provided that this subsection shall not apply to service pipes:
- (3) Nothing contained in this Act shall interfere with the right of the corporation at any time or times to alter the line or level of or improve any street in or along which any pipes or other works of the Company are

laid down and in the event of any such alteration or improvement as aforesaid being intended by the corporation the Company shall at their own cost in all things on receiving notice in writing under the hand of the town clerk so to do with all convenient speed alter the position of any such pipes or works in such manner and to such extent as such notice may reasonably prescribe and the corporation shall not be liable to make any compensation to the Company for any expense or loss to which the Company may be put in consequence of any such alteration or improvement. Provided that before and during any such alteration or improvement the corporation shall afford all reasonable facilities for temporarily carrying such pipes or works in or along the street so as not to interrupt the continuous supply of gas:

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- (4) All works shall be so executed by the Company as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any street or road in the city:
- (5) If any difference at any time arises between the corporation and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by the arbitration of a single arbitrator to be appointed failing agreement on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall subject as aforesaid apply to any such arbitration.

8. The provisions of the section of this Act whereof the marginal note is "For protection of corporation" shall so far as applicable apply and have effect for the protection of the urban district council of Stanley in relation to streets and roads vested in that council as if that council had been named therein in lieu of the corporation and as if such streets and roads had been referred to in lieu of streets and roads in the city of Wakefield.

For protection of
Stanley
Urban District Council.

9. In executing the works and exercising the powers by this Act authorised so far as they affect district roads and bridges vested in or under the control of the Wakefield Rural District

For protection of
Wakefield

A.D. 1912. Council in the West Riding of the county of York the following
Rural Dis- provisions for the protection of the Wakefield Rural District
trict Council. Council (in this section called "the rural council") shall have
effect unless otherwise agreed on in writing between the rural
council and the Company (that is to say):—

- (1) All mains pipes or works to be laid in or along any district road shall so far as is reasonably practicable be constructed and laid in such a position at the side thereof or otherwise as the rural council shall by writing under the hand of their surveyor direct. Provided that this subsection shall not apply to service pipes:
- (2) Nothing in this Act shall authorise the Company to interfere with the structural part of any district road bridge without the consent in writing of the said surveyor. Such consent shall not be unreasonably withheld and may be given upon such conditions as the rural council may reasonably determine:
- (3) All works to be constructed or laid in along or across or in any way affecting any district road or bridge or any approach thereto shall be executed at the expense of the Company under the superintendence and to the reasonable satisfaction of the said surveyor and (except in the case of service pipes) in accordance with plans sections and specifications to be submitted to and approved of by him in writing before the commencement of any such work and seven days' notice shall be given to the said surveyor of the intention to lay any service pipe in such road. Provided that if the said surveyor shall not within twenty-one days after the said plans sections and specifications shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof:
- (4) Where any mains pipes or other works of the Company are to be laid or constructed beneath the surface of any district road or bridge the same shall if possible be laid or constructed at such a depth that not less than two feet six inches shall intervene between the surface of such road or bridge and the upper surface

of such mains pipes or works Any difference as to the possibility of so laying or constructing any such mains pipes or works shall be determined by arbitration as hereinafter in this section provided : A D. 1912.

- (5) The works shall be so executed as not in any way to stop or unreasonably interfere with the traffic of any district road or bridge or any approach thereto and all such works shall be proceeded with and completed with all possible despatch :
- (6) If the Company in the execution of any works in or affecting any such road or bridge as aforesaid shall cause any damage injury or disturbance to such road or bridge and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Gasworks Clauses Act 1847 then it shall be lawful for the rural council after fourteen days' notice to the Company of the alleged neglect or refusal and of the works which they propose to execute to do all works reasonably necessary for making good all such damage injury or disturbance and the Company shall repay to the rural council all costs charges and expenses which the rural council shall reasonably and properly incur in carrying out such works :
- (7) Notwithstanding anything in this Act contained it shall be lawful for the rural council at any time or times to divert widen or improve any such district road and also to remove alter widen or renew any such district road bridge or the approaches thereto in alongside or near to which any such mains pipes or works are carried in the same manner as they might have diverted widened or improved removed altered or renewed any such district road or bridge or the approaches thereto if this Act had not been passed and such mains pipes or works had not been constructed or laid in over alongside or near to such district road or bridge respectively without making any compensation to the Company for any expense or loss to which they may be put in consequence of such diversion widening improvement removal alteration or renewal And in the event of any such district road or bridge or the approaches thereto in

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alongside or near to which such mains pipes or works are laid being diverted widened or improved removed altered or renewed as aforesaid the Company shall at their own expense as and when requested by the said surveyor remove or alter the position of their said mains or pipes and the works by which the same are carried alongside or near to any such district road or bridge or the approaches thereto as aforesaid and replace the same to the reasonable satisfaction of the said surveyor of the rural council Provided that before and during such diversion widening improvement removal alteration or renewal of any such district road or bridge as aforesaid the rural council shall afford reasonable facilities for temporarily carrying such mains or pipes along the district road or across the stream so as not to interrupt the continuous supply of gas :

- (8) Notwithstanding anything in this Act contained if any difference arise between the Company and the rural council touching this section or anything to be done or not to be done thereunder such difference shall be settled by arbitration by an arbitrator to be agreed upon or failing agreement to be appointed by the Board of Trade on the application of either of the parties in difference.

For protection of
Midland
Railway
Company.

10.—(1) Any mains pipes culverts or other works which the Company may under the powers of this Act lay down or execute under or over or which may affect any railway works or property belonging to the Midland Railway Company (in this section referred to as “the Midland Company”) shall be laid down and executed and subsequently maintained by the Company under the direction and superintendence if given and to the reasonable satisfaction of the chief engineer of the Midland Company and except in cases of emergency in accordance with plans and sections previously submitted to and reasonably approved by him and the Company shall make the Midland Company full compensation for all damage sustained by reason of the exercise of the powers of this Act Provided that if the said engineer shall not within fourteen days after such plans and sections shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto a difference shall be deemed to have arisen.

(2) The Company shall bear and on demand pay to the Midland Company the reasonable expense of any watching or signalling which may be necessary to provide for the protection of the railways of the Midland Company during the execution of the works aforesaid. A.D. 1912.

(3) Any dispute or difference which may arise between the Midland Company and the Company with reference to the provisions of this section or in any way arising thereout shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the Midland Company or the Company and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

11. Any mains pipes culverts or other works which the Company may under the powers of this Act lay down or execute under or over or which may affect any railway works or property belonging to the Great Northern Railway Company (in this section referred to as "the Great Northern Company") or belonging jointly to the Great Northern Company and the Great Central Railway Company (in this section jointly referred to as "the two companies") shall be laid down and executed and subsequently maintained by the Company under the direction and superintendence if given and to the reasonable satisfaction of the chief engineer of the Great Northern Company or the two companies as the case may be and except in cases of emergency in accordance with plans and sections previously submitted to and reasonably approved by the engineer of the Great Northern Company or the two companies as the case may be and the Company shall make the Great Northern Company or the two companies as the case may be full compensation for all damage sustained by reason of the exercise of the powers of this Act :

For protection of Great Northern Railway Company and Great Northern and Great Central Railway Companies.

Provided that if the engineer of the Great Northern Company or the two companies as the case may be shall not within fourteen days after such plans and sections shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto a difference shall be deemed to have arisen.

If any difference shall arise between the Company on the one hand and the Great Northern Company or the two companies on the other hand under this section such difference shall be

A.D. 1912. referred to and settled by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party and the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of Lan-
cashire and
Yorkshire
Railway
Company.

12. For the protection of the Lancashire and Yorkshire Railway Company (in this section called "the railway company") the following provisions shall unless otherwise agreed between the Company and the railway company be observed and have effect (that is to say):--

- (1) Whenever under the powers of this Act the Company shall require to lay down repair take up alter relay or renew any mains pipes culverts or apparatus in connection with their undertaking upon across or under any railway for the time being belonging to or worked by the railway company or the stations bridges approaches or other works thereof or to construct any works adjoining thereto they shall (except in cases of emergency) give to the engineer of the railway company fourteen days' notice in writing of their intention to carry out any such works accompanied by sufficient plans: .
- (2) Such works including the making good and repairing of any roads over any such railway and over any bridges and approaches which the railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company shall be laid constructed and executed at the expense of the Company under the superintendence if the same be given and to the reasonable satisfaction of the said engineer and (except in cases of emergency) according to plans to be previously reasonably approved by him and so as to avoid as far as possible injury to any such railway or any of the works thereof and so as not to cause any interruption to the passage or conduct of the traffic over or at any such railway or station Provided that if the said engineer shall not express his disapproval of such plans within fourteen days from the submission thereof he shall be deemed to have approved thereof:
- (3) When the Company open or break up any road or pavement of any street or other works belonging to or repairable by the railway company they shall with all

convenient speed complete the work for which the same shall be broken up and reinstate and make good the road or works so opened or broken up and shall keep any road or pavement so broken up in good repair for three months after reinstatement and making good and for such further time if any not exceeding in the whole twelve months as the soil so broken up shall continue to subside:

- (4) If the Company make any unnecessary delay in completing such work or reinstating and making good such road or works so opened or broken up or neglect to keep the road or pavement in repair as aforesaid the railway company may cause such work to be executed or effect such repair and the reasonable expense of executing the same shall be repaid to them by the Company:
- (5) The Company shall repay to the railway company the reasonable expense of any temporary works or watching which may be necessary to provide for the protection of any such railway or the traffic thereon or thereto during the carrying out of the works aforesaid:
- (6) If in the execution or maintenance of the works any injury shall arise to any such railway or station or any works connected therewith or any interruption of traffic be caused the Company shall make full satisfaction in respect thereof to the railway company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner hereinafter provided:
- (7) Any difference which may arise between the Company and the railway company under the provisions of this section shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

13. For the protection of the undertakers of the Aire and Calder Navigation (in this section called "the undertakers") the following provisions shall apply unless otherwise agreed between the Company and the undertakers:—

For protection of Aire and Calder Navigation.

- (1) Section 44 of the Act of 1847 shall be read and have effect as if that section had been repeated in this Act

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with reference to the powers conferred on the Company by this Act and the Acts incorporated therewith:

- (2) The Company shall not in exercise of the powers conferred by the Act of 1847 or this Act or the Acts incorporated therewith respectively lay any main pipe or other work over or across any canal belonging to the undertakers (hereinafter called "the canal") or the towing path thereof or other property of the undertakers except in the roadway of a fixed bridge carrying a public road over the same:
- (3) No injury to or interference with the structure of any bridge belonging to the undertakers or to or with the canal or other property of the undertakers nor interruption to the traffic on the canal or towing path shall be occasioned in the laying maintenance repair renewal or relaying of any main pipe or work of the Company:
- (4) All works in relation to the laying and except in cases of emergency in relation to the maintenance repair renewal or relaying of any main pipe or work of the Company across any bridge belonging to the undertakers other than works in relation to the maintenance repair renewal or relaying of any existing main pipe or work of which the character and position are not altered shall be executed under the superintendence if the same be given and to the reasonable satisfaction of the engineer of the undertakers and according to plans and sections submitted to and reasonably approved by him before the work is commenced. Provided that if the said engineer shall not signify his approval or disapproval of such plans and sections within twenty-one days after the same shall have been submitted to him he shall be deemed to have approved thereof:
- (5) If in the laying maintenance repair renewal or relaying of any main pipe or other work of the Company or by reason or in consequence of the failure or want of repair thereof any such injury interference or interruption as is mentioned in subsection (3) of this section shall be occasioned the Company shall compensate the undertakers in respect thereof:

(6) If by reason or in consequence of damage or subsidence A.D. 1912.

caused by underground workings the undertakers at any time require of which they shall be the sole judges to carry out works for the rebuilding alteration raising or repair of any bridge over the canal across or along which any main pipe or other work of the Company is laid and if in order to avoid interruption to the supply of gas by the Company in the execution of any such works it is in the opinion of the engineer of the undertakers necessary to alter the position of any such main pipe or other work on such bridge or to remove the same temporarily from such bridge then the Company shall at their own expense alter the position of such main pipe or other work to such other position on the said bridge as the said engineer may reasonably require or shall at the like expense if so required by such engineer temporarily carry the same across such bridge or at the side thereof in such manner as the said engineer shall reasonably approve and the undertakers shall not be liable to make compensation to the Company for any damage which the Company may sustain by reason of such alteration or removal:

(7) Any dispute or difference which may arise between the Company and the undertakers with reference to the provisions of this section shall be settled by arbitration by an engineer or other fit person to be appointed in default of agreement by the Board of Trade on the application of the Company or the undertakers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

14. The agreement dated the sixth day of November one thousand nine hundred and eight and made between the Company of the one part and the Crofton Parish Council of the other part and the agreement dated the sixth day of January one thousand nine hundred and nine and made between the Wakefield Rural District Council of the one part and the Company of the other part are hereby cancelled and determined.

Cancelling
agreements
with Crofton
Parish and
Wakefield
Rural
District
Councils.

15.—(1) The Ossett Corporation shall on the date of transfer (which expression in this section means the first day of January one thousand nine hundred and thirteen or such other date as may be agreed between the Company and the Ossett Corporation)

As to purchase in
certain areas
by Ossett
Corporation.

A.D. 1912. — purchase from the Company and the Company shall on that date sell to the Ossett Corporation—

(A) All mains pipes and other works and apparatus of the Company within the township or parish of Crigglestone (in this section referred to as “the said works”);

(B) The portion of the undertaking of the Company which is within the borough of Ossett free from all charges debts and liabilities upon or affecting the same;

and from and after the date of transfer the said works and the said portion of the undertaking of the Company shall for all purposes form part of the gas undertaking of the Ossett Corporation.

(2) The price to be paid by the Ossett Corporation to the Company for the said works and portion of the said undertaking shall be the sum of one thousand one hundred pounds and that sum shall be so paid on the date of transfer and if not then paid the corporation shall pay to the Company interest thereon at the rate of five per centum per annum until the date of actual payment. The receipt in writing of two directors of the Company for any money paid to them by the Ossett Corporation shall effectually discharge that corporation from the sum acknowledged in such receipt or from being answerable for the loss misapplication or non-application thereof.

(3) The Ossett Corporation may independently of any other borrowing power borrow at interest upon the security of the revenue of their gas undertaking or upon the security of the district fund and general district rate or upon both of those securities the sum of one thousand one hundred pounds and the provisions of Part IV. of the Ossett Corporation Gas Act 1900 with regard to the borrowing reborrowing and repayment of money shall so far as applicable and subject to the provisions of this section apply to the said sum as if the same were borrowed under the provisions of that Act. Any money borrowed by the corporation under the provisions of this section shall be repaid within a period of forty years from the date or dates of borrowing the same.

(4) Until the date of transfer the Company shall maintain the said works and portion of their undertaking as heretofore in the ordinary course of business and the Company shall be entitled to all rents profits and sums of money due in respect of the said works and the said portion of their undertaking

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(such rents profits and sums of money to be apportioned if necessary) and shall discharge all liabilities and outgoings in respect thereof up to the date of transfer and from and after that date the Ossett Corporation shall be entitled to all such rents profits and sums of money as may become due and shall discharge all such liabilities and outgoings as may be incurred.

(5) As from the date of transfer the Company shall (except so far as may be otherwise agreed in writing between the Ossett Corporation and the Company) cease to supply gas in or for use within the township or parish of Crigglestone and as from the same date all rights and obligations of the Company in relation to the supply of gas within any part of the borough of Ossett shall cease and determine.

(6) As from the date of transfer the proviso to Article VIII. of the Ossett Order 1900 (confirmed by the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1900) shall be repealed and the portion of the borough of Ossett referred to in the said proviso shall be added to the gas limits of the Ossett Corporation and that corporation shall have and may exercise within the said portion of the borough all and the like powers privileges and authorities for and in relation to the supply of gas and shall be subject to all and the like duties liabilities and obligations in respect thereof which they now have and are subject to within the gas limits prescribed by the Ossett Corporation Gas Act 1900 Provided that the Ossett Corporation shall not except so far as may be otherwise agreed in writing between the Company and the Ossett Corporation supply gas within or for use within any part of the limits of supply of the Company.

(7) Any question or dispute between the Company and the Ossett Corporation which shall arise under this section or as to any of the matters dealt with therein shall be referred to the arbitration of a single arbitrator to be appointed failing agreement by the Local Government Board and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

16. For the purpose of supplying gas within the limits of supply the Company shall have along so much of the main road leading from Wakefield to Barnsley (known as the Barnsley main road) as lies within the parish or township of Crigglestone and the township of Notton and along so much of the main

Power to lay mains &c. beyond limits of supply.

A.D. 1912. — road leading from Ossett to Wakefield between the Cross Keys Inn and Wakefield as lies within the borough of Ossett all the like powers and privileges and be subject to all the like duties and penalties in relation to the breaking up and reinstatement of streets and the laying down extension maintenance alteration enlargement renewal and discontinuance of any mains valves syphons and other works (including service pipes in the case only of the said main road leading from Ossett to Wakefield) which may be necessary or convenient for enabling them to supply gas within the limits of supply as they would have had or been subject to if so much of the said main roads as aforesaid had been included within the limits of supply. Provided that nothing in this section contained shall be construed as conferring any powers on the Company in relation to the supply of gas beyond the limits of supply or as subjecting them to any liabilities or obligations in respect of such supply for any public lamps within any part of the parish or township of Crigglestone the township of Notton or the borough of Ossett.

Lands for
manufacture
and storage
of gas.

17. The Company may hold and use for the purposes of their undertaking the lands described in the First Schedule to this Act and they may upon those lands erect construct lay down provide maintain alter improve enlarge extend and renew or discontinue gasworks and works for the manufacture and storage of gas and for the manufacture conversion and storage of residual products in accordance with the provisions of the recited Acts but the Company shall not purchase or use in any process of manufacture any materials other than those required for the making and supply of gas by them or for the working up of their own residual products or for the construction maintenance and repair of their gasworks plant and buildings or for the maintenance and repair of gas fittings.

Power to
construct
new foot-
path and
to stop up
existing
footpath.

18.—(1) Subject to the provisions of this Act the Company may in the parish of Wakefield make in the lines and according to the levels shown on the deposited plan and section the new footpath hereinafter described (that is to say):—

A new footpath commencing by a junction with Jacob's Well Lane at a point on the south side thereof 234 feet or thereabouts measured in an easterly direction from the junction of Nettle Lane with Jacob's Well Lane passing thence along the eastern side of the lands described in the First Schedule to this Act and terminating by a junction

with Earl Street at a point on the north side of that street adjoining the premises known as Number 2 Earl Street; A.D. 1912.

and the Company may subject to the provisions of this Act stop up so much of the existing footpath known as Nettle Lane as lies between Jacob's Well Lane and the south-west corner of the premises known as Number 28 Trilby Street:

Provided that such stopping up shall not take place until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use and as from the date of such certificate all rights of way over or along the existing footpath shall be extinguished and the Company may appropriate for the purposes of their undertaking the site of the existing footpath so stopped up as far as the same is stopped up:

Provided also that the Company shall make full compensation to all parties in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

(2)—(a) The said new footpath shall be of a width of not less than four feet throughout and shall be flagged and fenced and so far as may be necessary drained and lamp posts shall be erected therein by and at the expense of the Company to the reasonable satisfaction of the city surveyor of Wakefield and the footpath shall be constructed under the superintendence if given and to the reasonable satisfaction of the said surveyor:

(b) The said new footpath when made and completed shall be repaired and maintained for a period of twelve months by and at the expense of the Company and to the reasonable satisfaction of the said surveyor and after the expiration of that period by and at the expense of the corporation:

(c) Any dispute under this subsection shall be referred to the arbitration of a single arbitrator to be appointed failing agreement on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

A.D. 1912.

(3) Subject to the provisions and for the purposes of this Act the Company may enter upon take and use all or any of the land delineated on the deposited plan and described in the deposited book of reference.

Power to
purchase
lands by
agreement.

19. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands now belonging to them any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except so much of the lands described in the schedule to the Act of 1877 as are now vested in the Company (being the land first described in Part I. of that schedule and the land secondly described in Part II. of that schedule) and the lands described in the First Schedule to this Act.

Dwelling-
houses for
persons in
Company's
employ.

20. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices show-rooms and other buildings for the purposes of their undertaking and they may also erect maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company.

Power to
lease lands.

21. The power to sell and dispose of lands conferred upon the Company by section 6 of the Gasworks Clauses Act 1871 shall extend to authorise the Company to let on lease such lands and to retain and hold sell and dispose of any interest in or reversion to any lands so let and any such lease may be for such period and subject to such terms and conditions as the Company think fit.

Conversion
of ordinary
shares.

22.—(1) As from the first day of January one thousand nine hundred and thirteen all the ordinary shares in the existing capital of the Company shall be converted into two classes of stock (to be called "ordinary stock" and "five per centum maximum stock") and shall be vested in and divided among the holders of ordinary shares in the existing capital of the Company as follows:—

(i) For every existing share of twenty-five pounds each entitled to a dividend of ten pounds per centum per

annum twenty-five pounds of ordinary stock and twenty-five pounds of five per centum maximum stock :

(ii) For every existing share of five pounds each entitled to a dividend of ten pounds per centum per annum five pounds of ordinary stock and five pounds of five per centum maximum stock :

(iii) For every existing share of five pounds each entitled to a dividend of seven pounds ten shillings per centum per annum five pounds of ordinary stock and two pounds ten shillings of five per centum maximum stock :

(iv) For every existing share of ten pounds each entitled to a dividend of seven pounds per centum per annum ten pounds of ordinary stock and four pounds of five per centum maximum stock.

(2) As from that date there shall by virtue of this Act be created the nominal amount of one hundred and thirty thousand pounds of ordinary stock and eighty-one thousand six hundred and fifty pounds of five per centum maximum stock for the purpose of giving effect to the provisions of this section and the amounts of such stocks respectively to which the holders of existing ordinary shares respectively become entitled under this section shall be forthwith registered in their respective names in the books of the Company Provided that no person shall become entitled to any fractional part of a pound of ordinary stock or five per centum maximum stock but in every case in which any such person would but for this enactment have become entitled to a fractional part of a pound of stock the Company may at their option receive from such person such a further sum in cash as will make up an even pound of such stock at the market value or pay to such person in cash such a sum as will equal the market value of such fractional part.

23. All ordinary stock and five per centum maximum stock issued under this Act to holders of existing shares of the Company shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in upon or to which the existing shares for which such stock is substituted were held or were subject to immediately before the first day of January one thousand nine hundred and thirteen and shall be dealt with applied and disposed of accord-

Stock to be held on same trusts &c. as shares for which it is substituted.

A.D. 1912. ingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such existing shares and trustees executors or administrators or other incapacitated parties shall accept such stock in substitution for such existing shares held by them and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as they might have retained disposed of or otherwise dealt with such existing shares.

Certificates
to be called
in and others
issued.

24.—(1) The Company shall call in the existing certificates of shares of the Company for which ordinary stock and five per centum maximum stock shall be substituted by virtue of this Act and shall issue in exchange for those certificates to the respective holders thereof free of charge certificates of ordinary stock and five per centum maximum stock of the respective amounts to which those holders are by this Act respectively entitled.

(2) No holder shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such certificates of stock are to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity as the Company may require.

(3) Until the issue of such new certificates the existing certificates shall according to the amounts of ordinary stock and five per centum maximum stock to be substituted by virtue of this Act for the existing shares which they respectively represent have and confer the same rights and advantages as if they were certificates for the respective amounts of ordinary stock and five per centum maximum stock created by virtue of this Act.

(4) If any holder of any existing shares of the Company neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book the Company may suspend the payment of any dividend declared or made payable upon or in respect of the ordinary stock and five per centum maximum stock so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or

destroyed and an indemnity has been given against any claim in respect thereof to the satisfaction of the directors of the Company. A.D. 1912.

(5) On the issue of any certificate of ordinary stock and five per centum maximum stock the certificate or certificates for which the same are substituted shall be cancelled.

25. All transfers or other dispositions of shares in the capital of the Company as existing up to the conversion thereof shall after such conversion and notwithstanding this Act be valid and have due effect given to them respectively as transfers for the respective amounts of ordinary stock and five per centum maximum stock which the existing shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the shares transferred or disposed of had before such conversion and the bequest of or any covenant or provision of any deed or agreement relating to any such shares shall be held to apply to the nominal amount of stock equal to that for which such shares shall have been converted under the provisions of this Act.

Transfers
of shares
although by
present name
to be valid.

26.—(1) All stock of the Company shall be issued and be transferable only in amounts of one pound or multiples of one pound but so that the holding of any stockholder shall not be reduced below an amount of ten pounds of stock.

Stock to be
transferable
in multiples
of one pound.

(2) Notice of the effect of this enactment shall be stated in all certificates of such stock.

27. The powers conferred upon the Company by the Act of 1877 of raising further capital by shares or stock shall as regards any balance of the sum which they are so authorised to raise which shall not have been raised previous to the first day of January one thousand nine hundred and thirteen be exercised only by the creation and issue of preference stock and the provisions of section 11 of the Act of 1877 shall be read and have effect accordingly.

As to un-
exercised
powers of
Act of 1877.

28. The Company may from time to time raise additional capital not exceeding in the whole thirty thousand pounds by the creation and issue at their option of five per centum maximum stock or new preference stock or wholly or partially by one or other of those modes respectively :

Additional
capital.

A.D. 1912.

Provided that—

- (1) It shall not be lawful for the Company to raise any additional capital in pursuance of this Act until they shall have borrowed on mortgage of the undertaking or raised by the issue of debenture stock the whole of the sums which they are authorised to borrow by subsection (1) of the section of this Act whereof the marginal note is "Power to borrow in respect of existing and additional capital":
- (2) It shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of thirty thousand pounds:
- (3) The Company shall not raise by the issue of preference stock a greater amount of such additional capital than fifteen thousand pounds.

New stock
to be sold by
auction or
tender.

29.—(1) All stock in the additional capital authorised to be created under the powers of this Act shall be issued in accordance with the provisions of this section.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

- (a) Notice of the intended sale shall be given in writing to the town clerk of Wakefield and to the clerk of each urban or rural district having jurisdiction over any part of the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:
- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds : A.D. 1912.

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that if any offer by tender of any holder of stock in the Company be the same in amount as any offer made by any other person the offer of such holder of stock may be accepted in preference. In the case of a sale by auction a bid shall not be recognised unless it be in advance of the last preceding bid :

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the directors may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold may be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the stock.

A.D. 1912.

Application
of premium
arising on
issue of
stock.

30. All money raised under this Act including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which shall arise from the issue of any stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Company entitled to dividend. Provided that any such sum shall for the purpose of determining the powers of the Company to raise money by borrowing be reckoned as part of the paid-up capital.

Privileges
&c. of
holders of
additional
capital.

31. Subject to the provisions of this Act the additional capital raised by the Company under this Act shall be part of the general capital of the Company and save as otherwise provided in respect of such capital by the provisions of this Act the holders of stock in such additional capital shall be entitled to the like rights of voting and any other powers rights qualifications and privileges in proportion to the amount of their stock and be subject to the like provisions and liabilities in all respects as the other holders of stock of the same class or description.

Restriction
as to votes in
respect of
preference
stock.

32. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any stock to which a preferential dividend shall be assigned.

Borrowed
money not to
be converted
into capital.

33. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the conversion of the borrowed money into capital as incorporated with the recited Acts shall cease to apply to the Company.

Power to
borrow in
respect of
existing and
additional
capital.

34.—(1) The Company may at any time borrow on mortgage of the undertaking or raise by the issue of debenture stock in respect of the capital authorised by the recited Acts any sum or sums not exceeding in the whole (inclusive of the sums already borrowed by them under the provisions of those Acts) one-third part of the amount of such capital (including premiums thereon) which at the time of borrowing has been raised under the powers of those Acts.

(2) The Company may also subject to the provisions of this Act borrow on mortgage of the undertaking or raise by the issue of debenture stock in respect of the additional capital by this Act authorised to be created and issued any sum or sums not exceeding in the whole one-third part of the amount of such additional capital which at the time of borrowing has been

raised under the powers of this Act but no sum shall be so borrowed or raised until the Company have proved to the justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock at the time issued together with the premiums (if any) realised on the sale thereof shall have been fully paid up. A.D. 1912.

35. All moneys raised or to be raised by the Company on mortgage or debenture stock under the provisions of the recited Acts or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock. Priority of mortgages and debenture stock over other debts.

36. All mortgages and bonds granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing of this Act shall during the continuance of such mortgages and bonds and subject to the provisions of the Acts under which such mortgages and bonds were respectively granted have priority over any mortgages or debenture stock granted or created and issued by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. Existing mortgages to have priority.

37. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest on all debenture stock and on all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this or any subsequent Act and affecting the undertaking shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Debenture stock.

A.D. 1912. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Provisions
as to auction
&c. to apply
to loan
capital.

38. The provisions of this Act relating to the offering of stock for sale by public auction or by tender and to the sale thereof and to the application of the premiums arising from such sale shall so far as applicable apply mutatis mutandis in relation to the granting of mortgages and the issuing of debenture stock by the Company after the passing of this Act.

Arrears may
be enforced
by appoint-
ment of a
receiver.

39.—(1) The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

(2) The repeal by this Act of section 22 of the Act of 1877 shall be without prejudice to any appointment heretofore made or to any proceedings pending thereunder at the passing of this Act.

Receipt
in case of
persons not
sui juris.

40. If any money is payable to a stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Meetings of
Company.

41. As from the passing of this Act the ordinary general meetings of the Company shall be held in the month of February in every year and all meetings whether ordinary or extraordinary shall be held at such place or places within the limits of supply as the directors of the Company shall appoint.

Quorum for
general
meetings.

42. As from the first day of January one thousand nine hundred and thirteen the quorum for all general meetings of the Company shall be ten stockholders present in person or by proxy holding in the aggregate not less than one-twentieth part of the issued capital of the Company.

Scale of
voting.

43. As from the first day of January one thousand nine hundred and thirteen every holder of ordinary stock or five per centum maximum stock shall be entitled to one vote and an additional vote in respect of every twenty-five pounds of such stock held by him beyond the first twenty-five pounds up to

one hundred pounds and to an additional vote for every fifty pounds of such stock held by him beyond one hundred pounds. A.D. 1912.

44. From and after the passing of this Act the provisions of section 24 of the Act of 1847 with respect to the retirement and election of directors shall cease to apply and the directors in office at the time of the passing of this Act shall continue in office until the first ordinary meeting to be held after the passing of this Act in the month of February one thousand nine hundred and thirteen. As to election of directors.

At that meeting and at the ordinary meeting to be held in every subsequent year the stockholders present in person or by proxy shall (subject to the power contained in the Act of 1847 for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

45.—(1) As from the first day of January one thousand nine hundred and thirteen the qualification of a director of the Company shall be the possession in his own right of not less than five hundred pounds of stock of the Company and section 21 of the Act of 1847 shall be read and have effect accordingly. Qualification of directors &c.

(2) If any director shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for six months (unless such neglect be occasioned by illness or other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(3) The continuing directors may act notwithstanding any vacancy in the number of directors.

46. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director of the Company in place either of a director retiring by rotation or of a director dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing that such person intends to offer Notice of candidature for office of director.

A.D. 1912. — himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the office of the Company fourteen days at least before the day of election.

As to appointment of managing director.

47.—(1) The directors of the Company may appoint one or more of their body to be managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation or retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers. Provided that the directors shall be responsible for the acts of any managing director acting under the powers of this section.

Power for directors to determine remuneration of secretary.

48. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 and 1889 they may from time to time determine the remuneration of the secretary of the Company.

Auditors.

49.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors.

(2) It shall not be necessary for any auditor to hold any stock in the capital of the Company.

Limitation of profits.

50.—(1) The profits of the Company to be divided amongst the holders of ordinary stock of the Company in any year shall not except as by this Act provided exceed the rate (in this Act

referred to as "the standard rate of dividend") of five pounds per centum per annum. A.D. 1912.

(2) The profits of the Company to be divided among the holders of five per centum maximum stock shall not exceed the rate of five pounds per centum per annum.

(3) The profits of the Company to be divided among the holders of preference stock shall not exceed the rate of five pounds per centum per annum but the Company may create and issue any part of the new preference stock which they are by this Act authorised to create and issue with any other rate of dividend being less than five per centum per annum as they may determine.

51.—(1) In case in any year the funds of the Company applicable to the payment of dividends on preference stock shall be insufficient to pay the full amount of the dividends on the preference capital a proportionate reduction shall be made in the dividend of each class of preference stock. Dividends to be paid proportionately.

(2) In case in any year the funds of the Company applicable to the payment of dividends shall be insufficient to pay the full amount of the dividends at the standard rate of dividend on the ordinary stock and the full dividend on the five per centum maximum stock a proportionate reduction shall be made in the dividend of each of such stocks.

52. The directors may declare and pay a half-yearly dividend payable out of the profits of the Company for any half-year ending on the thirtieth day of June without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one-half of the amount of the authorised rate of dividend. Interim dividends.

53. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published or circulating in the district in which the principal place of business of the Company is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. Closing of transfer books previous to declaring dividend.

54. On and from the first day of January one thousand nine hundred and thirteen section 27 (Dividend dependent on Dividend dependent on price charged.

A.D. 1912. price charged) of the Act of 1877 shall be and the same is hereby repealed and from and after that date the standard price to be charged by the Company for gas supplied by them shall be three shillings per thousand cubic feet of gas:

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the standard rate of dividend payable by the Company on the ordinary stock as follows (that is to say):—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by five shillings upon every one hundred pounds of ordinary stock and so in proportion for any fraction of one hundred pounds:

In respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate of dividend by five shillings upon every one hundred pounds of ordinary stock and so in proportion for any fraction of one hundred pounds.

Price of gas
for public
lighting.

55. Notwithstanding anything contained in the Act of 1847 the price which may be charged by the Company for gas supplied by them to the corporation or to the urban district council of Stanley shall not in any year exceed the price charged by them in the same year to any other consumer of gas for lighting purposes.

Power to
create a
special pur-
poses fund.

56.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called “the special purposes fund.”

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated

accountant being the auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being— A.D. 1912.

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The money or securities standing to the credit of the insurance fund formed in pursuance of section 28 of the Act of 1877 shall be carried to the credit of the special purposes fund.

57. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend at the authorised rate on the ordinary stock and the dividend on the five per centum maximum stock the excess shall be carried to the credit of the profit and loss (net revenue) account of the undertaking for the next following year. Provided that the sum standing to the credit of such profit and loss (net revenue) account to be carried forward to the next following year shall not at any time exceed the amount required to pay one year's dividends at the authorised rates.

Application of excess of profits over authorised rate of dividend.

58. The prescribed number of candles shall not be less than fourteen.

Quality of gas.

59. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing places shall be three (that is to say):—

Testing places.

(a) The testing place which has been provided by the corporation at the town hall Wakefield or which

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may be provided by them at some other place situate within a distance of one thousand yards from the existing works of the Company (such distance being measured along any line of mains);

(b) The testing place which has been provided by the Company at their existing works or which may be provided by them at some other place at the works of the Company; and

(c) Any testing place which may be provided by and at the expense of the urban district council of Stanley within the urban district of Stanley:

Provided that no test shall be made at the last-mentioned testing place except by a gas examiner appointed by the urban district council of Stanley or by the justices on the application of consumers of gas within that district.

Testing for
quality.

60.—(1) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the Bar Photometer or the Table Photometer the standard light shall be that supplied by Harcourt's Ten-Candle Pentane Lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Company or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Company shall within three months after the passing of this Act provide all the apparatus required by this Act for the testing of gas at the testing place provided by the Company and shall at all times keep the same in proper order and repair.

(4) Any gas examiner appointed under the Gasworks A.D. 1912.
Clauses Act 1871 shall between the hours of nine in the morning and twelve noon of any or every day throughout the year have access to the prescribed testing places and may test the illuminating power and purity of the gas between those hours as well as at the times prescribed by the Gasworks Clauses Act 1871 in all respects as if the period between those hours were prescribed by section 29 of that Act as a period within which gas may be tested.

61. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water of not less than eight-tenths of an inch in height at the main or as near as may be to the junction therewith of the service-pipe supplying the consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test. As to pressure.

62.—(1) The Company shall at any time within two years after the first day of January one thousand nine hundred and thirteen if and when required by any consumer of gas supplied by the Company (other than a consumer by prepayment meter) supply to him and fix free of charge a sufficient number of flat flame burners suitable in all respects for the consumption of gas of the illuminating power prescribed by this Act in substitution for the flat flame burners in use before the said first day of January. Company to supply suitable burners gratis in lieu of those in use.

(2) The Company shall also as soon as reasonably practicable after the said first day of January one thousand nine hundred and thirteen and at the latest within a period of three months thereafter exchange the flat flame burners used by consumers of gas supplied by the Company by means of prepayment meters for flat flame burners similarly suitable for the consumption of gas of the illuminating power prescribed by this Act.

(3) Notice of the provisions of this section shall be given on each demand note of the Company sent out during the first-mentioned period of two years.

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No penalty
in case of
unavoidable
cause.

63. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Repeal of
certain sec-
tions of
recited Acts.

64. The sections of the recited Acts of which the numbers are set forth in the Second Schedule to this Act shall on and from the first day of January one thousand nine hundred and thirteen be and the same are hereby repealed.

Supply of
gas where
consumer
has separate
supply.

65. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive from the Company a stand-by supply of gas to any premises for purposes for which he has at the same time a supply of gas from an installation other than that of the Company or a supply of electricity unless he shall have agreed to pay the Company such minimum annual sum (not exceeding in any case twenty-five shillings for any period of three months) as will give to them a reasonable return on the capital expenditure and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889:

Provided that the Company shall not be entitled to any such minimum annual sum in respect of any premises for which the whole supply of gas afforded by them is taken through a meter having a nominal capacity of less than ten lights.

Power to
lay pipes
in private
streets.

66. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and for that purpose the Gasworks Clauses Acts 1847 and 1871 shall apply as if the street were a street within the meaning of those Acts:

Provided that so far as is reasonably practicable no pipe other than a service pipe laid or relaid under the powers of this section shall be laid or relaid at a less depth than two feet six inches from the surface of the street in which the same is laid.

67. The Company may lay down and repair take up alter or relay or renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

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Power to
lay down
pipes for
ancillary
purposes.

68.—(1) The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings for lighting motive heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

Power to
supply gas
fittings &c.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the persons in whose possession the same may be.

(3) All such fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company.

(4) The Company shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall be marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

69. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus

Power to
enter pre-
mises and
remove
fittings.

A.D. 1912. belonging to the Company and let by them on hire to any former occupier of such premises.

Power to require use of anti-fluctuators for gas engines.

70. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Notice of discontinuance of supply of gas.

71. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given personally by the consumer at the office of the Company.

Power to refuse to supply persons in debt for other premises.

72. If a person requiring a supply of gas from the Company occupies or has occupied other premises at which gas is being or was supplied to him by the Company and has not paid all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Period of error in defective meters.

73. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Company may contract with local authority &c.

74. The Company may contract with any local authority company or person authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the

supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond the limits of supply.

A.D. 1912.
for supply in
bulk.

75.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

Charges for
gas supplied
by prepay-
ment meters.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if the fittings include a gas cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The Company shall not charge for the hire of any prepayment meter without fittings any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and the cost of collection and other costs incurred by the Company in connection with the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

76. It shall be lawful for the directors of the Company to make superannuation and other allowances and to pay pensions to any officers servants or employees of the Company who may

Power to make
superannua-
tion and other
allowances.

A.D. 1912. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

ADDITIONAL LANDS UPON WHICH THE COMPANY MAY MANUFACTURE GAS AND RESIDUAL PRODUCTS AND STORE GAS.

A piece or parcel of land belonging to the Company situate in the township and parish of Wakefield in the West Riding of the county of York bounded on the north by Jacob's Well Lane on the east in part by land belonging or reputed to belong to Edwin Lodge Hirst and Edward Hirst and in part by land and cottages belonging or reputed to belong to Thomas Hammond on the south in part by property belonging or reputed to belong to Edward Walker and in part by Earl Street and on the west in part by land upon which the existing works of the Company are erected and in part by property belonging or reputed to belong to Edward Walker which piece or parcel of land contains by admeasurement 14,357 square yards or thereabouts.

THE SECOND SCHEDULE.

Short Title.	Sections repealed.
Wakefield Gas Act 1847 - - - - -	29 30 37 38 40 41.
Wakefield Gas (New Capital) Act 1856 - - -	10 11 12 13.
Wakefield Gas Act 1877 - - - - -	22 28 29 31 32.

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